SYNOPSIS AND LIST OF DATES

1. The petitioners who have continuously been in the services of the State of Karnataka, without any break for the period ranging from 24 years to 29 years are low-paid menial officials called Hamalis, appointed initially on a paltry emolument of Rs.285/- per month subsequently raised to Rs.500/- per month, which the petitioners are being paid even to this day.

2. Notwithstanding the total inhibition imposed by Articles 23 and 24 of the Constitution of India atleast to pay minimum wages against exploitation, Begar and also the statutory requirement under the Minimum Wages Act, 1948, the petitioners have been helpless objects of severe exploitation and forced labour althrough 17 employees who were identically situated like the petitioners herein having been regularised as Group 'D' Employees (Class IV Employees) in the services of the State, by an order dated 25.2.1991, they have even been promoted in the Commercial Tax Department of the State as Second Division Clerks to which cadre they were promoted subsequently. Unfortunately, the petitioners are being treated with an uneven hand, by exploiting the impecunious situation in which they have been placed.

2. On 24.1.1997 yet another batch of 180 daily wagers who were employed in various other departments of the State also were absorbed in the Commercial Tax Department of the State, and their services have been duly regularised. In the wake of the same, certain Hamalis who were identically situated and placed like the petitioners herein initiated proceedings before the Labour Officer, Hubli, Dharwar District, Karnataka State, in which proceedings the Commercial Tax Department of the State was directed by the said Officer to pay the said Hamalis who, as already stated had also been similarly appointed on a consolidated wages/salary of Rs.285/- that the said Hamalis to be paid minimum wages in accordance with the Minimum Wages Act, 1948. The said order dated 3.5.2008 having been assailed by the State of Karnataka and the Commercial Tax Department in W.P. No. 8091/2008 (L-MW) stood upheld by a learned single judge of the Hon'ble High Court by his order dated 9.11.2011. An intra-court appeal having been preferred therefrom by the Joint Commissioner of Commercial Taxes, Hubli, Dharwad District in W.A. No.30055/2005 a Division Bench of the Hon'ble High Court of Karnataka at its Circuit Bench, Dharwar, dismissed the same on the merits thereof that the stake involved therein was insignificant and that the claim of the Hamalis that they be paid minimum wages was just and equitable. It also found that there was no satisfactory explanation offered by the appellants herein for the delay in filing the said intra-court writ appeal and that the reasons stated in the application for condonation of delay in filing the

appeal was a stereo typed explanation that the delay was on account of official procedures. The Special Leave Petition in S.L.P. (C)Nos. 18950/2012 that the Joint Commissioner of Commercial Taxes (Intelligence Bureau) Hubli had filed in this Hon'ble Court was also similarly dismissed on 21.9.2012, thereby upholding the orders and judgment referred to above..

3. Having regard to the basic requirement of the State being a Model Employer and that as such an employer it has to eschew discrimination, arbitrariness, exploitation and Begar, it was but necessary that the petitioners who are also identically situated like the said hamalis whose just and legitimate claim has been upheld althrough, as stated above not only by the Labour Court, Hubli, a learned single judge of the Hon'ble High Court of Karnataka, Dharwar, a Division Bench of the said Court at its Circuit Bench, Dharwar and also by this Hon'ble Court, had to be granted the petitioners herein who are also identically situated like the said Hamalis ought to have been extended, parity of treatment, in consonance with the guarantee of Equality before Law, Equality in the matter of Employment under the State, Right to Life, and Equal pay for Equal Work, enshrined in Articles 14, 16 (1), 21 and 39 (d) of the Constitution of India. Since the respondents who far from showing did not show such a sovereign grace towards the petitioners who are low-paid employees, have subjected for decades, to extortion and Begar, and have been serving the State continuously, on such

a paltry and illusory emoluments they made several representations requesting for their absorption, regularization and for being extended, a reasonable payscale. They specifically pointed out through the said representation, that they were selected for appointment as Hamalis, by the Deputy Commissioner for Commercial Taxes of the respective zones, by conducting an interview for selection and that therefore, their employment in the State is neither illegal nor irregular, particularly in the light of the case pleaded by the respondents that the petitioners employment was not governed by any Rules of Recruitment framed under Article 309 of the Constitution of India or the proviso thereto they also contended that their appointment/employment is not through any back door method and that they have been continuing in service not by virtue of any interim orders of any court of law but because of the requirement of their services to the State which has been taking undue advantage of their helpless and impecunious situation including the fact that they have presently become over-aged for employment elsewhere. Since all the representations submitted by the petitioners were ignored with utter impugnity they approached the Karnataka Administrative Tribunal, Bangalore, with applications in A.No. 4462/2007 and companion applications, which were dismissed by the said Tribunal on 24.2.2012, by rejecting the claim made by the petitioners for a direction to the respondents that the petitioners be paid minimum of the pay scale attached to Group D posts from the date of their initial appointment and to make available to them all the

consequential benefits including the arrears of salary and allowances. Their other prayer in the applications filed before the Tribunal was for issuance of a writ of mandamus or any other appropriate writ or direction that they be regularised in the services of the State as Group D employees particularly keeping in view that they have completed, without the interim order of any court of law for over 10 long years.

4. Feeling highly aggrieved by the dismissal of the said applications they had approached the Hon'ble High Court of Karnataka at Bangalore with writ petitions in W.P. No.7222 to 7241/2012 on its file. The said writ petitions have been dismissed by the impugned order dated 25.9.2013 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore.

5. The petitioners genuinely feel it necessary, expedient and appropriate to bring to the kind notice of this Hon'ble Court that in the wake of the observations made in the impugned order of the Hon'ble High Court of Karnataka, that the petitioners might approach the authorities under the Minimum Wages Act, 1948, for payment of minimum wages they have filed on 29.11.2013 an application before the Labour Officer & Authority under the Minimum Wages Act, 1948, Sub-Division No.5, Karmika Bhavan, Bangalore. Because the said application does not form a part of the records of the Tribunal or the Hon'ble High Court, the petitioners intend producing a copy thereof at a later date by

seeking the leave of this Hon'ble Court separately, in that regard.

6. Since the reliefs sought for by the petitioners have been declined not only by the Tribunal but also by the Hon'ble High Court, by the impugned order respectively, they respectfully presents this Memorandum of Special Leave Petition, for relief.

LIST OF DATES:

30.3.1984	The Commissioner of Commercial Taxes in Karnataka, Bangalore, addressed a letter to the Finance Department of the State requesting the latter to permit the Commercial Tax Department of the State to effect recruitment to the posts of Hamalis, in view of the permanent nature of the work of Hamalis, required by and for the State.
30.5.1984 to 20.8.1985	The petitioners were appointed as Group D Employees and were being called Hamalis, posted to work at the Check posts and Mobile Check posts under the control of the Deputy Commissioner, Commercial Taxes (Intelligence) South Zone, Bangalore, they were so appointed after subjecting them to a selection process and interview. True copies of some of the Intimation Letters served on

them, calling them for an interview for selection are filed herewith as **ANNEXURES-P1, P2, P3 and P4**.

2.7.1984 After eliminating the candidates who did not emerge successful at the selection process, orders of appointment were issued to the petitioners many of whom are matriculates and undergraduates. Some amongst them merely knowing reading and writing the Regional Language Kannada. Copies of some of the orders of appointment so issued to them are filed as **ANNEXURE-P5 to P14**.

9.7.1987 The aforementioned request contained in the letter dated 30.3.1984 was replied to by the Government, intimating interalia the Government had no objection for the Department creating posts of Hamalis on monthly-wage basis and to fill them up as per the recruitment rules of the Commercial Tax Department, and that, the same, if was a permanent arrangement, the Commercial Tax Department had to follow the G.O. No. CWD/52/PWC 84 dated 30.3.1984 issued by the Public Works Department, CADA and Electricity Department and to frame service

rules for the Commercial Tax Department on the said lines. A true copy of the said letter dated 9.7.1987 is filed herewith as **ANNEXURE-P15**.

24.3.1994 — Complaining of non-payment of even the minimum wages attached to Group 'D' posts, and requesting for raising their monthly emoluments from Rs.500/- to the relevant payscale of Rs.840.00 to Rs.1340.00, as was prevailing in the year 1994, a representation was submitted to the respondents. **ANNEXURE-P16** is a true copy of the said representation, which was not considered.

21.11.1994 (published on 1.12.1994) — The Government issued an order that equal wages for the employees doing the same kind of work in the Government Departments/Industries, not lesser than the wages prescribed under the Minimum Wages Act, 1948, for those employed after 1.7.1984 was issued by the Government. A copy of the same is produced herewith as **ANNEXURE-P17**.

1994, 1999 — The emoluments of the civil servants of the

and 2007 State were revised by the Government of Karnataka while the petitioners who were initially appointed on a pay of Rs.285/- per month inclusive of all allowances are still being exploited on a meager total monthly emolument of Rs.500/- thereby subjecting them not only to exploitation forced labour and Begar but also to a hostile discrimination plainly opposed, interalia, to Articles 14, 16 (1), 21, 23, 24 and 39 (d) of the Constitution of India.

The payscale of Group D Employees in the services of the State of Karnataka were revised as follows:

Sl. No.	Year of Revision	Earlier Payscale	Revised Payscale
1.	1982	Rs.390.00 -	Rs. 550.00
2.	1987	Rs.780.00 -	Rs.1040.00
3.	1994	Rs.840.00 -	Rs.1340.00
4.	1999	Rs.2000.00 -	Rs.3850.00
5.	2007	Rs.4800.00 -	Rs.7275.00

Notwithstanding such periodical revisions effected in view of the dwindling purchasing power of money, and keeping in view the Cost of Living Index the petitioners have althrough been subjected to Begar, and their

services are being received by the State on a paltry emolument of Rs.500/- per month.

1.12.1995 In view of the grievance ventilated through the aforementioned representations remaining unconsidered a further representation was jointly made, reiterating the request for extension of the minimum pay scale attached to Group 'D' posts and for regularising their services in view of their having completed in the same posts more than 10 years of continuous service without break. A true copy of the said representation is filed herewith as **ANNEXURE-P18**.

10.7.1996 Having wanted for over 6 months from 1.12.1995 yet another representation was submitted, reiterating the same request. A copy of thereof is filed herewith as **ANNEXURE-P19**.

24.1.1997 180 persons who were working on daily wages basis, other departments of the State were posted to Commercial Tax Department that they be absorbed in the said Department. The same was not immediately implemented by the said Department which

	sought a clarification in that regard from the Finance Department of the State.
24.1.1997	The Finance Department of the State accorded permission for the absorption of the said 180 daily wages employees in the Commercial Tax Department. The same was resented to protested by the petitioners whose protest remained a cry in the wilderness.
20.3.1997	Yet another representation was submitted in that regard.
18.8.1998, 27.11.1998, 22.11.1999, 23.11.1999, 3.4.2000, 22.1.2002, 14.3.2003, 20.10.2003, 30.11.2005, 5.3.2007 and 15.6.2006	On all these dates representations were submitted, reiterating their requests which were ignored with utter impugnity and unconcern towards the plight of the petitioners. Even sweepers who are Group D employees were extended the benefit of the said Government Order, but not the petitioners.

21.7.2001 The Joint Commissioner of Commercial Taxes (Vigilance), Bangalore -20 issued a circular that the petitioners and others had to mark their attendance in the Attendance Register maintained by the respective officers. A true copy of the said circular is filed herewith as **ANNEXURE-P20**.

26.7.2005 Some amongst the petitioners had approached the Karnataka Administrative Tribunal, Bangalore, with Application in A.Nos. 6802 to 6819/2002 and companion applications, seeking a direction to the respondents therein to consider the cases for regularization of their services and payment of emoluments in the payscale prescribed for Group 'D' employees without deciding the applications on the merits thereof. The Tribunal passed an order that the verdict of this Hon'ble Court on the is to whether those daily wagers appointed subsequent to 1.7.1984 were entitled to regularization, absorption and extension of payscale that status-quo as to their position had to be maintained. Liberty was also reserved to the parties to the said applications to approach the Tribunal for "any further consequential orders or reliefs", after the decision of apex

court if need would arise. All the contentions raised therein were also kept open for being agitated later.

10.4.2006 A Constitution Bench of this Hon'ble Court was pleased to render its landmark verdict report in 2006 (4) SCC at page 1 = AIR 2006 SCW 1991 = AIR 2006 SC 1806 (The Secretary State of Karnataka and others Vs. Uma Devi (3) and others). The observations contained in paragraphs 53 and 55 thereof being relevant for the purpose of the present case, as in the said paragraphs it has been laid down that such of those who possessed the required qualification and had been appointed duly against sanctioned post, and have served continuously for more than 10 years without the intervention of Courts or Tribunals the question of regularisation of their services might have to be considered on merits in the light of the well-settled principles laid down by this Hon'ble Court in the various rulings referred to in the said verdict. Paragraph 55 of the said verdict is with reference to the recruitment in the Commercial Tax Department of the State of Karnataka, in particular.

6.9.2007	The petitioners had approached the Karnataka Administrative Tribunal, Bangalore, with applications in A.Nos. 4462/2007 and companion applications under Section 19 of the Administrative Tribunals Act, 1985 praying for a direction that they be extended the minimum of payscale attached to Group D post from the date of their initial appointment and to direct that their services be regularised in view of their having completed more than 10 years of continuous service without the intervention or interim orders of any Court/Tribunal.
3.5.2008	The Labour Officer, Hubli, passed an order in favour of the Hamalis who were similarly situated like the petitioners but were working in the Commercial Tax Department in Dharwar District, directing that the difference in the minimum of payscale and even compensation be paid to them.
3.8.2010	The ruling reported in 2010 (9) SCC at page 247 as The State of Karnataka and others Vs. M.C. Kesari and others was rendered by this Hon'ble court, laying down as to the categories of cases to which the exception

contained in paragraph 53 of Umadevi's case supra 2006 (4) SCC page 1 would be applicable.

9.11.2011 In W.P. No.8091/2008 (L-MW) filed before the Circuit Bench of the Hon'ble High Court of Karnataka at Dharwad, final orders were passed, upholding the direction dated 3.5.2008 that the petitioners therein had to be paid the difference in the minimum wages, with 7% interest per annum on the said amount. However the direction for payment of compensation was quashed. In otherwords the said writ petition of the Joint Commissioner of Commercial Taxes (Intelligence Bureau) was partly allowed. A true copy of the said order of the learned single judge is produced herewith as **ANNEXURE-P21**.

31.1.2012 A Division Bench of the Hon'ble High Court of Karnataka at Dharwar, affirmed the said order of the learned single judge, both on merits and on the aspect of delay in filing of the said appeal. A copy of the said judgment is produced herewith and marked as **ANNEXURE-P22.**

24.2.2012 By its common order rendered in the aforementioned applications the Tribunal dismissed the claim of the petitioners. A true copy of the common order rendered in the said application is filed herewith as **ANNEXURE-P23**.

21.9.2012 S.L.P. No (Civil) No.18950/2012 which had arisen from the aforementioned judgment of the Hon'ble High Court of Karnataka on its Circuit Bench, Dharwad was also dismissed summarily. A copy of the said order is filed herewith as **ANNEXURE-P24**. In the said SLPs the respondents had contended interalia that the orders of the Labour Officer, of the learned single judge, and also the judgment of the Division Bench were opposed interalia to Section 20 of the Minimum Wages Act and Rule 7 of the Rules framed thereunder. The said contentions did not find favour in the said SLPs.

25.9.2013 By the impugned order commonly passed in W.P. No.7222 to 7247/2012 (S-KAT) a Division Bench of the Hon'ble High Court of Karnataka at Bangalore, has dismissed the said petitions observing that it is open to the petitioners to approach the authorities under

Minimum Wages Act for payment of minimum wages and if such requests are made the same would be considered by the said authorities.

29.11.2013 In the wake of the observation made as mentioned above, an application under Section 20 (2) and 21 of the Minimum Wages Act, 1948 has been filed by the petitioners.

In the said application commonly filed by the petitioners have prayed for a direction to the respondents to pay the petitioners the difference of minimum wages in a sum of Rs.1,09,00,298.92.

..2013 Aggrieved by the impugned order dated 25.9.2013 whereby the writ petitions filed by the petitioners have been dismissed, this Special Leave Petition is presented, respectfully praying for relief.

New Delhi Advocate for the Petitioners

Date:

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No. /2011

In the matter of :-

1. Sri. T.B. Nagaraju,
aged about 50 years,
Working as Hamali,
Office of the Joint Commissioner of
Commercial Taxes (Vigilance),
Koramangala,
Bangalore, and residing at
House No.278, Sri. Laxminarasimhaswamy
Nilaya, Kurubarahalli,
Mahalakshmipuram,
Bangalore – 560 086

2. Sri. D. Krishna,
s/o. late Dasappa,
aged about 56 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.53, Rajarajeshwarinagar,
Aligi Vedarahalli,
Near Mahalakshmi Engineering Works,
Bangalore.

3. Sri.N. Shankar,
Aged about 48 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence),
South Zone, Bangalore, and
Residing at House No.195, 3rd Cross,
Kurubarahalii, Mahalakshmipuram,
Bangalore- 560 086

4. Sri. G. Shivaswamy,
s/o. late Gaviyappa,
aged 50 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,

Bangalore, and residing at
House No.38, 8th Main Road, 3rd Cross,
Bairaveshwaranagar,
Nagarabhavi Road,
Bangalore – 560 076.

5. Sri. G. Prakash,
s/o. late Gangaiah,
aged about 51 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Vigilance), Koramangala,
Bangalore, and residing at
House No.10/5, 2nd Cross,
Kathriguppe Main Road,
Vivekananda Nagar,
Banashankari 3rd Stage,
Bangalore- 560 085

6. Sri. R. Basavaraj,
s/o. late Ramegowda,
aged about 48 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.2578, 7th Cross,
7th Main Road, R.P.C. Layout,
Vijaynagar II Stage,
Bangalore- 560 040

7. Sri. Ramachandraiah,
s/o. late Ningaiah,
aged about 47 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), South Zone,
Bangalore, and residing at
House No.921, 2nd Main Road,
4th Block, H.M.T. Layout,
Nagasandra Main Road,
Nagasandra Post,

Bangalore- 560 073

8. Smt. Jayalakshmamma,
w/o. late Gangoji Rao,
aged about 55 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.144, 2nd Cross,
Kalyanapura, Dasarahalli,
Bangalore.

9. Sri. M. Ramesh,
s/o. Muddappa,
aged about 47 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.71/1, 4th Cross,
5th Main Road, Thyagarajanagar,
Bangalore- 560 028

10. Sri. Ramanaiah S.,
s/o. Janaiah,
aged about 44 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Vigilance), Koramangala,
Bangalore, and residing at
House No.129, 3rd Cross,
Bagalur Main Road,
Viveknagar, Yelahanka,
Bangalore- 560 064

11. Sri. Ankaiah,
s/o. late Lingaiah,
aged about 56 years,
Working as Hamali, Office of the

Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.30, Vijayanagar,
2nd Stage, 3rd Main, 2nd Cross,
Bangalore- 560 040

12. Sri. Mayanna Gowda,
s/o. late Marimayanna Gowda,
aged about 47 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), South Zone,
Koramangala, Bangalore, and residing at
House No.32, Malleshwaram,
Bangalore- 560 003.

13. Sri. B.T. Maranna,
s/o. late Thimmarayappa,
aged about 43 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Vigilance), Koramangala,
Bangalore, and residing at
House No.10, Babasahebara Palya,
Kengeri Post,
Bangalore- 560 060

14. Sri. S.N. Narase Gowda,
s/o. late Narasegpowda,
aged about 47 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), South Zone,
Koramangala, Bangalore, and residing at
House No.4/1, Kumara Vyasa Road,
3rd Main Road, Srinagar,
Bangalore- 560 050

15. Sri. B. Manjunath,
s/o, late Boraiah,

aged about 55 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.8, 14th Cross, Pipeline,
Cholur Palya, Vijayanagar,
Bangalore- 560 040

16. Sri. N. Eswarappa,
s/o. late Narayanappa,
aged about 60 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore, and residing at
House No.265, Sriganda Nagar Post,
Yegganahalli Post,
Viswaneedam Post,
Bangalore- 560 091

17. Sri. B. Shivakumar,
s/o. late Boraiah,
aged about 40 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Koramangala,
Bangalore

18. Sri. Rangaraju,
s/o. Thimmaiah,
aged about 52 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Sira Road,
Tumkur, and residing at
Backside of Jain Temple,
2nd Main Road, Sira Road,
Tumkur.

19. Sri. Kumbaiah,

s/o. Puttashyamaiah,
aged about 48 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Sira Road,
Tumkur, and residing at
Puttaswamaiah Palya,
Near Sira Gate Post, Tumkur.

20. Sri. Zaheer Ahmed,
s/o late Mohammed Jabbar Sait,
aged about 51 years,
Working as Hamali, Office of the
Joint Commissioner of Commercial
Taxes (Intelligence), Sira Road,
Tumkur. Petitioners

And:-

1. The State of Karnataka,
Represented by its Secretary to
Government Finance Department,
(Commercial Taxes),
Vidhana Soudha,
Bangalore- 560 001

2. The Commissioner of
Commercial Taxes,
Gandhinagar,
Bangalore- 560 009 Respondents

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL ORDER DATED 25.9.2013 PASSED BY THE DIVISION BENCH OF THE HON'BLE HIGH COURT OF KARNATAKA, BANGALORE, IN W.P. Nos. 7222-7241/2012 (S-KAT

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioners above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated the 25.7.2013, in W.P. Nos. 7222-7241/2012 (S-KAT) passed by the Division Bench of this Hon'ble High Court of Karnataka, Bangalore,

2. QUESTIONS OF LAW :-

(i) Whether the respondents are justified in extracting personal service from the petitioners for the last over 24 to 29 years on a paltry monthly emolument of Rs.285/-, raised to Rs.500/- per month, thereby denying to them even the minimum wages and the timescale of pay applicable to Group 'D' employees of the Commercial Tax Department of the State?

(ii) Whether, having regard to the undeniable fact that the petitioners have been in continuous service for nearly two decades they are not entitled to be regularised in the services of the State as Group 'D' employees, despite the observations contained in paragraph 53 at page 42 of the rulings of this

Hon'ble Court, in the case of the ***Secretary, the State of Karnataka and others Vs. Uma Devi*** and others reported in 2006 (4) SCC page 1 as further clarified in the case of State of Karnataka Vs. M.L. Kesari and others, reported in 2010 (9) SCC page 247; and the ratio of the decisions of this Hon'ble Court in the cases of (i) The State of Mysore Vs. S.V. Narayanappa vide 1967 (1) SCR 128 = A.I.R. 1967 SC page 1071; R.N. Nanjundappa Vs. T. Thimmaiah 1972 (1) SCC page 409 = 1972 (2) SCR 799 and B.N. Nagarajan Vs. the State of Karnataka vide 1979 (4) SCC page 507 = 1979 (3) SCR 937, since the petitioners have been in continuous service without the aid of court orders for their continuance in service?

(iii) Whether, having regard to the undeniable fact that the State Government, in its Finance Department directed the Commissioner of Commercial Taxes of the State, in a letter dated 9.7.2007 addressed by it, that necessary amendment to the Cadre and Recruitment Rules of the Commercial Tax Department be made, providing for recruitment to the posts of Hamalis, being the failure to bring about such amendments being made use of by the respondents to the disadvantage of the petitioners?

(iv) Whether, in the light of the admitted fact that employees similarly situated like the petitioners have been regularised in the services of the State as Group 'D' employees in the Government Order dated 25.2.1991 besides regularising the services of 17 other hamalis as Group 'D' officials is not

the treatment meted out to the petitioners wholly arbitrary and discriminatory, the same being violative interalia of Articles 14 and 16 (1) of the Constitution of India?

(v) Whether, the regularisation of the services of 5 more Hamalis as Group 'D' officials ordered by the Government on 27.11.1995 while denying the same to the petitioners is or is not an invidious discrimination practised against the petitioners who are similarly situated like the other Hamalis?

(vi) Whether the contention of the respondents, as noticed in paragraph 6 of the impugned judgment that the petitioners "do not satisfy the requirement mentioned paragraph 53 in the judgment of Uma Devi's case" was sound and unacceptable?

(vii) Whether having regard to the fact that the petitioners have been in continuous service for a period ranging from 24 to 29 years, would it be proper or reasonable to subjectively presume that the petitioners "were not appointed against any sanctioned post"?

(viii) Whether even having categorically and rightly held in paragraph 8 of the impugned judgment that "it is true that this appointment were also made after conducting an interview and that persons who were employed similarly were regularized as per Exhibit P17, P18 and P19, can the

impugned order declining the relief prayed for by the petitioners is sound and correct?

(ix) Whether the 1.7.1984 is a sound cut off date, and is sacrosanct for determining as to whether those who have been appointed posterior thereto but are, in all response similarly situated like those appointed prior to that date?

(x) Whether, having regard to the undeniable and admitted fact that the petitioners have been in continuous service for a period from 24 to 29 years is the impugned judgment tenable, in observing that the petitioners were appointed as Hamalis as a temporary arrangement.

(xi) is not the denial of Equal Pay for Equal Work, and even the denial of minimum wages to the petitioners, opposed interalia, to Articles 14, 16 (1), 21 and 39 (d) of the Constitution of India and the provisions of the Minimum Wages Act, 1948.

(xii) Whether or not the order passed by the Labour Officer, Hubli, and affirmed by a learned Single Judge and a Division Bench of the Hon'ble High Court of Karnataka, at Dharwar, culminating in the summary dismissal of the Special Leave Petition in S.L.P. No.(Civil) 18950/2012 does not have a bearing on the legitimate claim made by the petitioners herein who are also identically situated like the Hamalis who have succeeded in the said proceedings although?

(xiii) Whether a Welfare-State wedded to the Rule of Law, and governed by a written constitution justified in exploiting the helpless and impecunious situation of the petitioners and extract work from them on a paltry monthly emolument of Rs.500/- for decades?

(xiv) Right to Life being a fundamental right guaranteed by Article 21 of the Constitution of India, has not the same been grossly denied to the petitioners, by the impugned action of the State, upheld in the impugned order?

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioners state that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. Because the respondents are not justified in extracting personal services from the petitioners for the last over 24 to 29 years on a monthly emolument of Rs.285/-, raised to Rs.500/- per month, by denying to them even the minimum wages and the timescale of pay applicable to Group 'D' employees of the Commercial Tax Department of the State?

II. Because in view of the undeniable fact that the petitioners have been in continuous service for nearly two decades are entitled to be regularized in the services of the State as Group 'D' employees, in view of the observations contained in paragraph 53 at page 42 of the rulings of this Hon'ble Court, in the cases of the Secretary, the State of Karnataka and others Vs. Uma Devi and others reported in 2006 (4) SCC page 1 has further clarified in the case of State of Karnataka Vs. M.L. Kesari and others reported in 2010 (9) SCC page 247; and the ratio of the decisions of this Hon'ble Court in the cases of (i) the State of Mysore Vs. S.V. Narayanappa vide 1967 (1) SCR 128 = A.I.R. 1967 SC page 1071; R.N. Nanjundappa Vs. T. Thimmaiah 1972 (1) SCC page 409 = 1972 (2) SCR 799 and B.N. Nagarajan Vs. the State of Karnataka vide 1979 (4) SCC page 507 = 1979 (3) SCR 937, the petitioners have been in continuous service without the aid of court orders for their continuance in service.

III. Because it is an undeniable fact that the State Government, in its Finance Department directed the Commissioner of Commercial Taxes of the State, in a letter dated 9.7.2007 addressed by it that necessary amendment to the Cadre and Recruitment Rules of the Commercial Tax Department be made providing for recruitment to the post of Hamalis, and the failure to bring about such amendments be made use of by the respondents to the disadvantage of the petitioners.

IV. Because, in the light of the admitted fact that similarly situated employees like the been regularized in the services of the State as Group 'D' employees in the Government Order dated 25.2.1991 besides regularizing services of 17 other hamalis as Group 'D' officials is not the treatment meted out to the petitioners is wholly arbitrary and discriminatory being violative interalia of Articles 14 and 16 (1) of the Constitution of India.

V. Because the regularization of 5 more hamalis as Group 'D' officers ordered by the Government on 27.11.1995 while denying the same to the petitioners is or is not an invidious discrimination practiced against the petitioners who are similarly situated like the other hamalis.

VI. Because the contention of the respondents, as noticed in paragraph 6 of the impugned judgment that the petitioners "do not satisfy the requirement mentioned in paragraph 53 in

the judgment of Uma Devi's case is unsound and sound and unacceptable in the light of the admitted and undeniable fact that, without the aid of the interim order the petitioners have continued in service for nearly 3 decades.

VII. Becauyse of the fact that the petitioners have been in continuous service for a period ranging from 24 to 29 years, it would not be permissible to presume that the petitioners were not appointed against any sanctioned post.

VIII. Because the impugned order categorically and rightly holds in paragraph 8 of the impugned order that it is true that this appointment were also made after conducting an interview and that persons who were employed similarly were regularized as per Exhibit P17, P18 and P19, the impugned order declining the relief prayed for by the petitioners is unsound and incorrect.

IX. Because the cut off date viz., 1.7.1984 is sacrosanct for determining the petitioners eligibility to be regularized and merely because they cannot be denied regularization.

X. Because of the undeniable and admitted fact that the petitioners have been in continuous service for a period from 24 to 29 years the impugned order is not correct in observing that the petitioners were appointed as hamalis as a temporary arrangement.

XI. Because the denial of equal pay for equal work, and even the denial of minimum wages to the petitioners is opposed to Articles 14, 16 (1), 21 and 39 (d) of the Constitution of India and the provisions of the Minimum Wages Act, 1948.

XII. Because the order passed by the Labour Officer, Hubli, and affirmed by a learned Single Judge and a Division Bench of the Hon'ble High Court of Karnataka at Dharwar, culminating in the summary dismissal of the Special Leave Petition in S.L.P. No.(Civil) 18950/2012 does not has significant bearing on the legitimate claim made by the petitioners herein who are also identically situated like the hamalis who have succeeded in the said proceedings althrough.

XIII. Because no Welfare-State governed by a written constitution and wedded to the Rule of Law would be justified in exploiting the helpless and impecunious situation of the petitioners and extract work from them on a paltry monthly emolument of Rs.500/- for decades.

6. GROUNDS FOR INTERIM RELIEF :-

The petitioners have been in the services of the Commercial Tax Department of the State of Karnataka as hamalis for the last over 24 to 29 years they were initially appointed on a total emolument of Rs.285/-, later enhanced to Rs.500/- which they

have been drawing even to this day, for decades. The same works out to Rs.16.70 per day and is thus grossly illusory and far below the minimum wages prescribed under the Minimum Wages Act, 1948, the misery that the petitioners have been thus undergoing is inexplicable and heart-rendering. The impecunious situation in which they have been placed on account of the unreasonable attitude of the respondents towards the petitioners is inexplicable. In these hard days of steep escalation of the cost of living, it is well-neigh impossible for anyone to keep his/her body and soul together without a reasonable financial resources in that regard. The respondents are quite complaisant about the petitioners rendering service as a paltry emolument, in view of the helpless situation in which they have been placed.

The respondents cannot justifiably subject the petitioners to such an exploitation and Begar which they have been perpetuating. Therefore, the monstrosity of the situation, and the peculiar facts and circumstances of the case rightly cry for an interim-judicial interdict of directing the respondents to extend to the petitioners atleast the minimum pay scale payable to the Group D employees in the services of the State of Karnataka during the pendency of the present Special Leave Petition, lest the misery and sufferings that the petitioners have been silently suffering and encountering would continue to get perpetuated, without any redressal thereof. Hence, it is most respectfully submitted that this Hon'ble Court be pleased to grant an interim order as prayed

for herein.

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final Order dated 25.9.2013 passed by a Division Bench of the Hon'ble High court of Karnataka, Bangalore in W.P. Nos. 7222-7241/2012 (S-KAT) on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that this Hon'ble Court, be graciously pleased to:

(a) ***grant*** an ad-interim order directing the respondents to pay to the petitioners monthly emoluments on par

with the Group 'D' employees of the State of Karnataka, and to confirm the said interim order after service of notice to this petition, on the respondents and after hearing them in the matter;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioners

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2013

IN THE MATTER OF:

Sri. T.B. Nagaraju and 19 others Petitioners

Versus

The State of Karnataka and another Respondents

AFFIDAVIT

I, Sri. N. Shankar, aged 48 years, s/o. Late Narasimhaiah,

Working as Hamali, Office of the Joint Commissioner of Commercial Taxes (Intelligence), South Zone, Bangalore, and residing at House No.195, 3rd Cross, Kurubarahalli, Mahalakshmipuram, Bangalore – 560 086, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I am one of the petitioner in the Special Leave Petition and as such I am fully conversant to the facts of the case. I am authorised to swear to this affidavit on behalf of the other petitioners also, which I hereby do.

2. That the contents of the Synopsis and List of dates (from pages B to…….), the Special Leave Petition paras 1 to 8 from pages and IAs respectively have been read by me carefully and I have understood the same, I state that the facts stated herein are true to the best of knowledge and belief, I say that all the information is based on records and advice given by an Advocate.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

Bangalore
Date: 13.12.2013

VERIFICATION

Solemnly affirmed and signed before me on this 13th day of December, 2013, and the contents of this affidavit having been read over to me in Kannada language and admitted to be true and correct to the best of my knowledge and beliefs, no part of it is false and nothing material has been kept concealed therefrom.

DEPONENT

Verified at Bangalore on this day of 13th December 2013.